TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633

phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Planning Commission

Dick Hassberger – Chair ***Sharon Bridges*** – Vice Chair
Gary Szczepanski – Secretary ***Tami McCaslin*** – ZBA ex Officio
Mike Tobin – Township Board ex Officio

Roger Carey – Zoning Administrator ***Deb Trim –*** Ordinance Enforcement
David Lipovsky – Building Inspector ***Deb Sherrod*** – Recording Secretary

Regular Meeting – Tuesday, July 13, 2021, at 7:00 pm. Called to order at 7:01 pm by Chair Hassberger.

Roll Call:
Present – Hassberger, McCaslin, Szczepanski, Tobin, Carey, Sherrod
Absent – Bridges, excused
Public – 12

Approval of Minutes:
Approval of the regular meeting minutes of June 15, 2021. McCaslin made a motion to approve the minutes as presented. Tobin seconded. Motion passed.

Approval of Agenda: Approved with no changes.

Zoning Administrator's Report: See Attachment #1
ZA Carey also read the following statement:

"Many of you have read the letter I sent to Vicky. I will stand behind that 100% even in court. Roof is the cover of a building making it a structure. A roof shall also be construed to include a cover over an outdoor area. A canopy as I see it is a structure, a lot of people have questioned this, and questioned an umbrella over a picnic table. I read parts of the Ordinance over and over because you rarely read them the same. Today I found what I would call a loophole. Our zoning states anything that exceeds 60 square feet in floor area or eight feet in height is a

building/structure. So as I see it, if you take an 8x7, 6x10, or 5x12 tarp/canopy and erect it on poles or tie it to trees, it is okay and does not need a permit."

Hassberger moved to accept the Zoning Administrator's report. Tobin seconded. Motion passed with all in favor.

Building Inspector's Report: See Attachment #3
No questions were asked. Hassberger moved to accept the Building Inspector's report. Tobin seconded. Motion passed with all in favor.

Ordinance Enforcement Report: See attachment #2
Tobin read full report.

Several questions were asked and discussed.

Old Business:
1. Revisit and discuss Rental Ordinances: McCaslin had sent out a draft copy of the rental ordinance for everyone to review. She briefly went over some of the changes she made to the original draft. She would like to present this at a public hearing if the planning commission members approve of doing so and then pass it on to the township board of trustees. She emphasized that this is not a short term rental ordinance; it is a rental ordinance without specifying length of time.

Szczepanski made a motion to present this at a public hearing and go forward with it. McCaslin seconded. Motion passed with all in favor. The public hearing will be in August.

2. Discuss plans for Master Plan review and re-approval: Chair Hassberger reported that this is an ongoing review.

3. Discussion of Blighted Properties: No comments on this topic at this time.

New Business: None

Public Comment: Several comments were made concerning White Birch Lakes and the township ordinances.

Announcements: Next Regular Meeting will be Tuesday, August 10, 2021, at 7:00 pm.

Motion by McCaslin to adjourn the meeting; seconded by Tobin. Motion passed with all in favor. Meeting adjourned at 7:57 p.m.

Respectfully Submitted,

Gary Szczepanski, Secretary

Attachment #1

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9538 website: www.lincolntwp.com e-mail: mcarey55@charter.net
Roger Carey **-** Zoning Administrator

Zoning Administrator Report
June 2021

Zoning Applications

1. 5/29/21 received an application for an accessory building at 229 Lake George Ave. approved
2. 6/10/21 received an application for an addition to house at 1331 Arbor Dr. denied
3. 6/11/21 received an application for an accessory building at 1325 Forest Blvd. approved
4. 6/7/21 received an application for a lean-to at 5868 Oak Run Rd. approved
5. 6/10/21 received an application for a fence at 4721 Teaberry Lane. Approved
6. 6/18/21 received an application for a retaining wall at 1822 Forest. Approved
7. 6/18/21 received an application for a roof over deck at 1604 Lake Dr. denied
8. 6/17/21 received an application for a covered porch at 5179 Cedar Ct. approved
9. 6/26/21 received an application for an accessory building in front yard at 2138 Elkhorn Way. Denied
10. 6/21/21 received an application for an addition to an accessory building 2805 W. Lake George Dr. approved

Ordinance Complaints

1. 6/3/21 received a complaint of an accessory building on a vacant lot #010-660-034-00.
2. 6/3/21 received a complaint of an accessory building on a vacant lot # 010-680-204-00.
3. 6/3/21 received a complaint of 2 Recreational Vehicles on a lot smaller than one- and one-half acres lot # 010-700-480-00.
4. 6/3/21 received a complaint of 2 Recreational Vehicles on a lot smaller than one- and one-half acres lot # 010-740-778-00.
5. 6/3/21 received a complaint of an accessory building on a vacant lot # 010-746-040-00.
6. 6/3/21 received a complaint of an accessory building on a vacant lot and 2 Recreational Vehicles on a lot smaller than one- and one-half acres lot # 010-746-112-00.

7. 6/3/21 received a complaint of an accessory building on a vacant lot #010-746-177-00
8. 6/3/21 received a complaint of 2 Recreational Vehicles on a lot smaller than one- and one-half acres lot # 010-746-238-00.
9. 6/3/21 received a complaint of an accessory building on a vacant lot #010-747-358-00.
10. 6/10/21 received a complaint of 2 Recreational Vehicles on a lot smaller than one- and one-half acres lot # 010-440-014-00.
11. 6/10/21 received a complaint of 2 Recreational Vehicles on a lot smaller than one- and one-half acres lot # 010-720-718-00.
12. 6/18/21 received a complaint of 2 Recreational Vehicles on a lot smaller than one- and one-half acres lot # 010-440-015-00.
13. 6/26/21 received a complaint of an accessory building no zoning permit at 1950 Forest Blvd.
14. 6/29/21 received a complaint of a vicious dog at 2146 W. Jefferson Rd.

Other

In regard to the 10 White Birch complaints I filed, 5 camper and 1 accessory building complaints have been resolved. I have allowed 1 extension and I have filed a second complaint on 3 accessory buildings.

I received a complaint of a vicious dog this month. Vicious dog is a dog that kills another dog, in this case a pit bull killed a Chihuahua. I have filed a complaint demanding the dog be removed from the township according to our ordinance. The County has also filed a dangerous dog complaint which will be going to court soon.

The following is from Rudi (animal control):

We ask people to please call in if they see a loose dog. We do need photo's if the case goes to court (usually, unless there are several witnesses), but we still want people to call ,so A. we can go out and possibly catch the dog running, and B. To give the owners' a verbal warning, and C. To start a case file on those people and those dogs. It's very frustrating to us and the people that call when they say "this dog is ALWAYS loose" and we ask them if they have called and made a complaint? And they say no. We have no case then, when something terrible happens, we have no history. Frustrating for all. I'm not sure we will win a "Dangerous Dog" case, on this dog, but we are willing to give it a try. Usually those are for dogs that show aggression to people, but since this dog killed another dog, it's worth a shot, and it sets us up in case the dog gets loose again. Make sense? Call if we can help. Rudi

Attachment #2

Lincoln Township

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9841 ext. 5 website: www.lincolntwp.com e-mail: ordinance103@gmail.com

***Deb Trim* - Ordinance Enforcement Officer**

June 2021 - Ordinance Report

Complaint 2272 W Jefferson Rd 6-5-21 rechecked property no clean up, sent 2nd and final letter 6-9-21. On going

Complaint 961 Pocahontas 2nd complaint to on going situation, had started clean up, will revisit in July. On going

Complaint 529 Marys Lane 6-13-21 Drove by took pictures, several unplated vehicles and metal debris, sent letter 6-15-21 gave 20 days to resolve. On going

C**omplaint** 130 Silver Lake Dr 6-20-21 rechecked property nothing done to unsafe garage that had damage from fire. Sent 2nd notice giving 20 days to remove. On going

Complaint 147 Newsom trash bags in yard and broken windows have not gotten a mailable address since May. 6-20-21 Went to hand deliver, no response. Will revisit in July. On going

Complaint 982 Pocahontas 6-27-21 Drove by took pictures no info as to being condemned, no way to check water source, debris in yard. Sent letter 6-3-21, gave 20 days to clean lot. On going.

Attachment #3

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, MI 48633-0239 phone: [989] 588-9841 website: www.lincolntwp.com
e-mail: bor@lincolntwp.com

Clare County Community Services – Building Department [989] 539-2761 www.clareco-building.net

Permits Issued for June, 2021

(Permit Number)	(Parcel Number)	(Address)	(Brief Description)
PP21 – 00042	010-340-015-00	856 Oak Dr.	Plumbing Fixtures
PB21 – 00150	010-012-300-04	1651 Old State Ave.	Final Inspection
PM21 – 00154	010-680-311-01	5181 Wolf Lane	LP Tank & Piping
PM21 – 00155	010-700-425-00	5290 Fawn Terrace	LP Tank & Piping
PE21 – 00180	010-621-003-00	932 Forest Blvd.	Appliances & Wiring
PE21 – 00182	010-012-100-02	1571 S. Old State Ave.	Generator – Final Inspection
PB21 – 00185	010-008-100-56	486 Forest Blvd.	Garage – Detached
PE21 – 00188	010-660-047-00	4855 Squirrel Run	Electrical Upgrade
PE21 – 00191	010-660-171-09	4380 Mockingbird Circle	Electrical Upgrade
PB21 – 00198	010-720-639-00	4961 Elm Run	New Roof
PB21 – 00200	010-300-009-00	1950 Forest Blvd.	DEMO – Old Garage
PB21 – 00206	010-340-015-00	856 Oak Dr.	Kitchen Addition
PB21 – 00215	010-660-011-00	4851 White Birch Lane	Pole Barn
PB21 – 00234	010-660-180-00	4480 Mockingbird Circle	Re-Shingle Roof & Vinyl Siding
PE21 – 00224	010-720-615-00	5448 Timber Rd.	Electrical Upgrade
PE21 – 00232	010-300-007-01	1956 Forest Blvd.	Electrical Upgrade & Generator
PE21 – 00235	010-680-362-00	5861 Old State Ave.	Electrical Upgrade
PB21 – 00235	010-263-031-00	229 Lake George Ave.	Prefab. Shed
PB21 – 00240	010-680-207-00	5285 Wolf Lane	Window Replacement (X 5)

PB21 – 00243	010-540-033-00	911 Pine St.	Re-Roof
PE21 – 00243	010-340-015-00	856 Oak Dr.	Kitchen Addition & Electrical
PE21 – 00256	010-660-070-00	4611 Mockingbird Circle	Service to Camp Site
PB21 – 00260	010-629-003-00	1177 Forest Blvd.	Addition
PE21 – 00276	010-328-001-00	1841 Lake Dr.	Bathroom/ Laundry Room Electrical Additions
PB21 – 00279	010-680-201-00	5179 Cedar Ct.	Roof Extension & Metal Roof

PB21 – 00283	010-330-001-80	2012 Forest Blvd.	Pole Barn
PE21 – 00294	010-746-344-00	4722 Hemlock Lane	Service to Camp Site
PE21 – 00296	010-740-869-01	2160 Hemlock Lane	Service to Camp Site
PE21 – 00300	010-800-008-00	931 Arbor Dr.	Electrical Upgrade
PE21 – 00302	010-800-017-00	333 Oak Tree	Electrical Upgrade
PE21 – 00314	010-016-400-23	2640 Devon Trail	New Addition Wiring & Hookup
PE21 – 00317	010-740-896-00	2291 Hemlock	Service Upgrade & Camper Pole
PE21 – 00318	010-298-005-00	2807 W. Lake George Dr.	Wiring & Fixtures for 2nd Story Addition
PE21 – 00319	010-740-885-00	2411 Hemlock Lane	Service to Camp Site
PE21 – 00327	010-660-011-00	4851 White Birch Lane	Wiring for New Pole Barn
PE21 – 00334	010-610-042-50	778 W. Shingle Lake Dr.	Electrical Upgrade